



POLICE DEPARTMENT

October 27, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202202774 (Incident Date: May 2, 2022) regarding Police Officer
Matthew Regan, Tax No. 957992 (DADS No. 2023-28954)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202202774, pertaining to Police Officer Regan. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said member of the service would be detrimental to the Police Department's disciplinary process, in that the officer's actions in this matter do not warrant discipline.

Police Officer Regan responded as backup to a domestic assault call involving two siblings. He was familiar with the location since he was part of the domestic violence unit in the command and had previously responded to calls for assistance at the same location. When he arrived, there were many other officers present inside the apartment, along with several members of the family that resided at the location. The scene was chaotic as the mother was protesting the arrest of one of her adult children. As the mother continued to protest, Police Officer Regan heard a baby crying. In response, he went down the hall, into a bedroom and checked on the child. Body Worn Camera footage captures the baby crying in the background as the officers attempted to assuage the mother and calm the scene.

Within ten to twenty seconds of Officer Regan being in the room with the child, the child's father returned. He immediately began questioning why Police Officer Regan was inside his room with his child. At some point, the father of the child yelled at Police Officer Regan to get the hell out

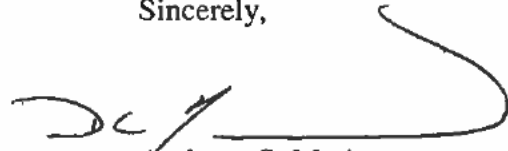
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of his room. Since he was alone with the individual, who was yelling in an aggressive tone, Police Officer Regan felt it was prudent to remove himself from an escalating situation and leave the apartment rather than continuing to engage the individual. Upon leaving the room, he noticed that the individual was following closely behind him. When he turned around, he saw the individual was tensed up close behind him. For this reason, Police Officer Regan felt he needed to create some distance between them as he maneuvered through the narrow hallway and so he pushed the individual back and away from him. This was further corroborated by the individual's sister who stated that she held on to her brother's body because it appeared to her that he may push Police Officer Regan back. Immediately after, the individual and other family members requested the name of Police Officer Regan. Officer Regan believed that he gave his name as he was exiting his apartment, however, there was no evidence to confirm or refute this fact. Nonetheless, body worn camera footage captures other officers providing his name to the family, and thus, the request was satisfied.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice, intends to retain jurisdiction over this matter, and impose no disciplinary action for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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ARVA RICE
INTERIM CHAIR

November 1, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Matthew Regan
Disciplinary Case No.: 2023-28954

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 27, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and impose no disciplinary action against Police Officer Regan for the alleged misconduct. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that to pursue Charges and Specifications against said member of the service would be detrimental to the Police Department’s disciplinary process, in that the officer’s actions in this matter do not warrant discipline.” CCRB disagrees with this determination.

On August 28, 2023, the CCRB filed the following charges and specifications against Police Officer Regan:

1. Police Officer Matthew Regan, on or about May 2, 2020, at approximately 1214, while assigned to 101 PCT and on duty, in the vicinity of § 87(2)(b) Queens County, wrongfully used force, in that he pushed § 87(2)(b) without police necessity.

PG 221-02, page 2, Prohibition 11—USE OF FORCE; PG 221-01—FORCE GUIDELINES

2. Police Officer Matthew Regan, on or about May 2, 2020, at approximately 1214, while assigned to 101 PCT and on duty, in the vicinity of § 87(2)(b) Queens County, abused his authority as a member of the New York City Police Department, in that he refused to provide his name to § 87(2)(b)

AG 304-11—COMPLIANCE WITH THE NEW YORK CITY RIGHT TO KNOW ACT

It is undisputed that Police Officer Regan responded as backup to a domestic assault call involving two siblings at § 87(2)(b) in Queens. Upon arrival, Police Officer Regan entered the apartment and heard a baby crying. Police Officer Regan went down the hall and into the bedroom to check on this baby. As Police Officer Regan was inside the bedroom, the father of the child came back and began to question Police Officer Regan about why he was in his bedroom and told him to get out. Police Officer Regan then walked out of the bedroom but noticed that § 87(2)(b) was behind him. Police Officer Regan turned around and pushed § 87(2)(b) away from him. After Police Officer Regan pushes him away, § 87(2)(b) and other family members that were present asked Police Officer Regan for his name, which Police Officer Regan did not provide.

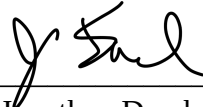
While the entirety of this alleged misconduct was not caught on Body-Worn Camera video footage, it is undisputed that Police Officer Regan pushed § 87(2)(b). Police Officer Regan admitted to it and while he tried to justify his use of force by stating that he felt threatened by § 87(2)(b) both § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) did not make any threats towards Police Officer Regan and was simply walking behind Police Officer Regan. Police Officer Regan did not have a reason to fear for his safety or the safety of others, other than the general possibility of something happening. Since § 87(2)(b) did not pose a danger to anyone, nor was he being detained, nor was he under arrest, and there were no other extenuating circumstances, Police Officer Regan was not justified in pushing § 87(2)(b) and should be held accountable for this misconduct.

In addition, at the 46:43 minute mark in Police Officer Backer's BWC video footage (BR # 2— 202202774_20220601_0954_DMIA.MP4), several officers are seen standing in the area between the living room and § 87(2)(b) bedroom. While the bedroom and the adjacent hallway are not visible in the footage, you cannot hear any yelling coming from the direction of the bedroom. At the 46:49 minute mark, Police Officer Jendzo is seen quickly moving down the hallway towards § 87(2)(b) bedroom as Police Officer Regan is seen walking towards him. A female civilian is heard asking, "Why do you have your hands on him?" § 87(2)(b) is seen standing several feet behind Police Officer Regan asking, "What's his name?" in a conversational tone. Police Officer Backer is standing next to Police Officer Regan as § 87(2)(b) requests his name. While Police Officer Regan continues to walk through the apartment, he does not respond and does not provide his name.

Police Officer Regan is seen ignoring § 87(2)(b) request for his name in Police Officer Backer's BWC video footage (BR # 2— 202202774_20220601_0954_DMIA.MP4). While Police Officer Regan acknowledged that he heard § 87(2)(b) ask for his name, he stated that he did not provide it until he was walking out the front door of the apartment and when § 87(2)(b) was not within earshot. Even if we assume this is true, this is still unsatisfactory pursuant to the Administrative Guide's requirements. Therefore, Police Officer Regan failed to provide his name to § 87(2)(b) after he was requested to do so and should be held accountable for this misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Police Officer Regan in this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 2, 2023

Re: CCRB Case No. 202202774 (Incident Date: May 2, 2022) regarding Police Officer
Matthew Regan, Tax No. 957992 (DADS No. 2023-28954)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 1, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Matthew Regan, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Regan, for the reasons expressed in my October 27, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Matthew Regan receive no disciplinary action in connection with this matter.

Sincerely,

Anthony S. Mariño
Deputy Chief
Commanding Officer
Police Commissioner's Office